

State of Tennessee

SENATE JOINT RESOLUTION NO. 9

By Senator Stevens; Mr. Speaker McNally; Senators Jackson, Powers, Taylor, Gardenhire, Hensley, Rose, Walley, Watson

and

Mr. Speaker Sexton; Representatives Doggett, Hardaway, Powers, Reneau, Moody, Davis, Cepicky, Gillespie, Carringer, Helton-Haynes, Eldridge, Howell, Williams, Alexander, Slater, Todd, White, Haston, Scarbrough, Parkinson

A RESOLUTION proposing an amendment to Article I, Section 35 of the Constitution of Tennessee, relative to the rights of crime victims.

WHEREAS, House Joint Resolution No. 94 of the One Hundred Thirteenth General Assembly, which proposed amendment of Article I, Section 35 of the Constitution of Tennessee, relative to the rights of crime victims, was considered and agreed to by a majority of all the members elected to each of the two houses, as shown by the yeas and nays entered on their journals; and

WHEREAS, such resolution proposing such amendment was published in compliance with Article XI, Section 3 of the Constitution of Tennessee; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that a two-thirds majority of all members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article I, Section 35 of the Constitution of Tennessee be amended by deleting the section in its entirety and substituting the following:

Section 35. That to preserve and protect the rights of victims of crime to justice and due process throughout the criminal and juvenile justice systems, a victim, as defined by law and which may be expanded by the General Assembly, shall have the following rights, which shall be protected:

(1) The right to be treated with fairness for the victim's safety and dignity;

(2) The right, upon request, to reasonable notice of all public criminal proceedings and all public juvenile delinquency proceedings involving the accused;

(3) The right to be present at all public criminal proceedings and all public juvenile delinquency proceedings involving the accused;

(4) The right upon request to be heard in any proceeding involving release, plea, sentencing, disposition, and parole, as well as any public proceeding when relevant during which a right of the victim is implicated;

(5) The right to be heard and informed of all parole procedures, to participate in the parole process, to provide information to the parole authority to be considered before the parole of the offender, and to be notified, upon request, of the parole or other release of the offender;

(6) The right to be free from harassment, intimidation, and abuse throughout the criminal justice system, including reasonable protection, as defined by the General Assembly, from the accused or any person acting on behalf of the accused;

(7) The right, upon request, to reasonable notice of any release, transfer, or escape of the accused or convicted person;

(8) The right to full and timely restitution from the offender;

(9) The right to a speedy trial or disposition and a prompt and final conclusion of the case after the conviction or sentence;

(10) The right to be informed of the minimum sentence the offender will serve in custody and the scheduled release date;

(11) The right to have the safety of the victim, the victim's family, and the general public considered before any parole or other post-judgment release decision is made;

(12) The right, upon request, to confer with the prosecution; and

(13) The right to be fully informed of all rights afforded to crime victims.

A victim may assert the rights enumerated in this section, not as a party, but in the manner further provided by the General Assembly protecting the victim's right to standing. The General Assembly has the authority to enact substantive and procedural laws to further define, implement, preserve, and protect the rights guaranteed to victims by this section. This section must be interpreted to preserve and protect the rights of all persons to due process. This section, or any law enacted under this section, does not create a basis for vacating a conviction. This section does not restrict the powers of the District Attorney General or the inherent authority of the court.

Other than as provided in the preceding paragraph, this section does not create a cause of action or claim for damages against the state or a political subdivision of the state; an officer, employee, or agent of the state or of any of its political subdivisions; or an officer or employee of the court.

BE IT FURTHER RESOLVED, that, in accordance with Article XI, Section 3 of the Constitution of Tennessee, the foregoing proposed amendment shall be submitted to the people at the next general election in which a governor is to be chosen, the same being the 2026 November general election, and the Secretary of State is directed to place such proposed amendment on the ballot for that election.

BE IT FURTHER RESOLVED, that the Clerk of the Senate is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.

SENATE JOINT RESOLUTION NO. 9

ADOPTED: April 21, 2025

RANDY McNALLY
SPEAKER OF THE SENATE

CAMERON SEXTON, *SPEAKER*
HOUSE OF REPRESENTATIVES

TENNESSEE SENATE

RUSSELL A. HUMPHREY
CHIEF CLERK

RANDY MCNALLY
LT. GOVERNOR
SPEAKER OF THE SENATE

May 8, 2025

The Honorable Tre Hargett
Secretary of State
First Floor, State Capitol
600 Dr. Martin Luther King, Jr. Blvd.
Nashville, TN 37243

Dear Secretary Hargett:

Enclosed is a copy of Senate Joint Resolution No. 9, a resolution to propose an amendment to Article I, Section 35 of the Constitution of Tennessee.

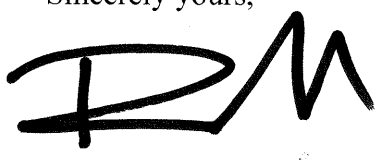
Senate Joint Resolution No. 9 was read by the Senate of the One Hundred Fourteenth General Assembly of the State of Tennessee for the first time on February 24, 2025, for the second time on February 27, 2025, and for the third and final time on March 3, 2025, and was thereupon adopted by the Senate by a two-thirds majority.

Senate Joint Resolution No. 9 was read by the House of Representatives of the One Hundred Fourteenth General Assembly of the State of Tennessee for the first time on April 16, 2025, for the second time on April 17, 2025, and for the third and final time on April 21, 2025, and was thereupon concurred in by the House of Representatives by a two-thirds majority.

Senate Joint Resolution No. 9 was signed by the Speaker of the Senate on April 29, 2025, and by the Speaker of the House of Representatives on April 30, 2025.

As directed in the Resolution, I am transmitting herewith a copy of Senate Joint Resolution No. 9 to you. With best wishes, I am,

Sincerely yours,



Russell A. Humphrey
Chief Clerk of the Senate

2ND FLOOR STATE CAPITOL • NASHVILLE, TN 37243-0001 • 615.741.2730
RUSSELL.HUMPHREY@CAPITOL.TN.GOV